

## 24STCV18194 24STCV18194

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-07-09

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Case Number: 24STCV18194 Hearing Date: July 9, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

MYUNG

SOOK CHUN,

Plaintiff,

vs.

JAY

KIM, et al.,

Defendants

Case No.:

24STCV18194

Hearing

Date:

July 9, 2026

## ORDER

### DENYING UNOPPOSED MOTION TO BE RELIEVED AS COUNSEL

#### I. BACKGROUND

Defendant Jay Kim ("Kim"), assisted by all other named defendants, allegedly accessed Plaintiff Myung Sook Chun's ("Chun") computer to copy confidential and personal financial information for Defendants' personal gain. Plaintiffs sue Defendants for conversion, invasion of privacy, and intentional infliction of emotional distress.

On May 26, 2026, Defendant Gotssom, Inc.'s ("Gotssom") attorney, Harold Jung, filed this instant motion to be relieved as counsel for Gotssom.

No opposition has been filed to date.

#### II. LEGAL STANDARD

A

(Motion to Be Relieved as Counsel) requires (1) notice of motion and motion to be directed to the client (made on the Notice of Motion and Motion to be Relieved as Counsel—Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil form (MC-052)); (3) service of the notice of motion and motion and declaration on all other parties who have appeared in the case; and (4) the proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil form (MC-053)).

The

court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client, and it does not disrupt the orderly process of justice. (*Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915.)

#### III. DISCUSSION

Counsel

did not submit a completed MC-051 form. Section 1 of the MC-051 form is left blank, with no attorney named. All sections of the MC-051 form must be completed prior to the Court granting the requested relief.

Additionally,

Counsel did not submit proof of service on Gotssom. Although counsel stated, in MC-052's Section 3, Gotssom was served via mail, no proof of service was submitted in support of this assertion. The attached proof of service does not attest Gotssom was served, instead only listing other parties who have appeared in this action. Absent confirmation via proof of service, the Court denies the motion.

#### IV. CONCLUSION

Gotssom's

Counsel's Motion to Be Relieved as Counsel is therefore DENIED.

Counsel is ordered to give notice.

DATED:

July 9, 2026

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Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at [email protected] with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless all parties submit by email to this

tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the parties neither submit nor appear at

hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.